



CHAPTER xx.

An Act for making provisions respecting the capital of the Falmouth Docks Company and for other purposes. A.D. 1915.
[24th June 1915.]

WHEREAS by the Falmouth Docks Act 1859 (hereinafter called "the Act of 1859") the Falmouth Docks Company (hereinafter called "the Company") were incorporated with a capital of two hundred thousand pounds in eight thousand shares of twenty-five pounds each and were authorised as soon as ninety thousand pounds part of the said capital was subscribed for and one half thereof paid up to borrow on mortgage or bond not exceeding thirty thousand pounds and when the whole of the capital was subscribed for and one half thereof paid up to borrow on mortgage or bond further sums not exceeding with any sums previously so borrowed sixty-six thousand six hundred and sixty-five pounds:

And whereas the Company raised the sum of ninety-nine thousand eight hundred and forty-five pounds by the issue of one half of their capital authorised by the Act of 1859 and borrowed under the provisions of the Act of 1859 the sum of thirty thousand pounds:

And whereas by the Falmouth Docks Act 1864 (hereinafter referred to as "the Act of 1864") the Act of 1859 was (subject to certain provisions in the Act of 1864 contained) repealed:

And whereas by the Act of 1864 the then authorised capital of the Company was divided into a sum of one hundred thousand pounds called therein ordinary capital and representing that portion of the then authorised capital of the Company which had been subscribed for and a sum of one hundred thousand pounds called further capital and representing that portion

A.D. 1915. of such authorised capital as had not been subscribed for and the Company were authorised to raise additional share capital to the extent of one hundred and sixty thousand pounds :

And whereas under the provisions in the Act of 1864 contained the Company have raised fifty-four thousand seven hundred and nineteen pounds two shillings and ninepence being part of the said sum of one hundred thousand pounds further capital by the creation and issue of preference shares and stock bearing interest at five pounds per centum per annum :

And whereas under the provisions in the Act of 1864 contained the Company borrowed on mortgage from the Public Works Loan Commissioners sums amounting in the aggregate to fifty thousand pounds with interest at the rate of three pounds five shillings per centum per annum :

And whereas default having been made in payment of certain interest and instalments of principal payable to the Public Works Loan Commissioners under the mortgages or one of them made to them the said Commissioners have entered into and have since remained and are now in possession of the property and undertaking of the Company and receipt of the rates tolls and income thereof :

And whereas the Public Works Loan Commissioners have since they entered into possession of the property and undertaking of the Company advanced for the purposes of the undertaking further sums amounting in the aggregate to thirty-seven thousand two hundred and fifty pounds or thereabouts the whole of which with interest thereon has been repaid and the said Commissioners have by their secretary since they entered into possession as aforesaid executed made and done divers works leases and agreements acts and things necessary or expedient to be executed made and done in the management of the property and undertaking of the Company :

And whereas by the Falmouth Docks Act 1874 (hereinafter called "the Act of 1874") the Act of 1864 was (subject to the provisions of the Act of 1874) repealed :

And whereas by the Act of 1874 (section 31) it was enacted that on and after the commencement of that Act the capital of the Company should be the aggregate of the following amounts (that is to say) :—

- (A) One hundred thousand pounds ordinary capital representing so much of the Company's authorised capital

of two hundred thousand pounds under the Act of 1859 as had been subscribed for previous to the passing of the Act of 1864:

(B) One hundred thousand pounds further capital representing so much of the Company's authorised capital of two hundred thousand pounds under the Act of 1859 as had not been subscribed for previous to the passing of the Act of 1864 but of which the sum of fifty-four thousand seven hundred and nineteen pounds two shillings and ninepence had been since raised by preference shares and stock bearing interest at five pounds per centum per annum as in this Act recited:

(c) One hundred and sixty thousand pounds additional capital by the Act of 1864 authorised:

And whereas since the passing of the Act of 1874 the Company have raised further sums by the issue of preference stock to the extent of twelve pounds three shillings and sixpence and by the issue of pre-preference stock under the provisions of the Act of 1874 to the extent of five thousand six hundred and twenty-five pounds:

And whereas the holders of the pre-preference stock consent to the ranking of that stock *pari passu* with the preference shares and stock and to take in substitution therefor such amount of preference stock as is provided by this Act:

And whereas all interest due and owing to the Public Works Loan Commissioners under their mortgages has been duly paid up to the thirty-first day of December one thousand nine hundred and fourteen and there remains due and owing to them a balance of twelve thousand pounds or thereabouts in respect of principal under the said mortgages:

And whereas there is due to the executors of the late Robert Milford Tweedy the principal sum of four thousand five hundred and six pounds five shillings and elevenpence with interest thereon at the rate of five pounds per centum per annum secured by a mortgage bearing date the second day of December one thousand eight hundred and sixty-seven:

And whereas no interest on the said sum of four thousand five hundred and six pounds five shillings and elevenpence due to the executors of the said Robert Milford Tweedy has ever been paid and there remains due and owing for principal and interest on the said mortgage the sum of fourteen thousand

A.D. 1915. — eight hundred and seventy pounds eleven shillings and fourpence or thereabouts:

And whereas the Company are indebted to the firm of Tweedy Williams and Company in the sum of two thousand two hundred and sixty-nine pounds or thereabouts and to sundry creditors on revenue account in the aggregate the sum of twenty-two thousand four hundred and twenty-one pounds or thereabouts as shown by the books of the Company:

And whereas no other claims have been put forward since 1875 and any now advanced would be statute barred:

And whereas the existing capital of the Company now consists of the following sums (namely):—

	£	s.	d.
4,000 ordinary shares of 25 <i>l.</i> each paid up	99,845	0	0
2,000 preference shares of 25 <i>l.</i> each			
paid up	-	-	-
Preference stock paid up	-	-	-
Pre-preference stock paid up	-	-	-
	50,000	0	0
	4,731	6	3
	5,625	0	0

And whereas since the passing of the Act of 1874 the undertaking of the Company has been extended and has since that date continued to be and is now being worked by the Public Works Loan Commissioners as mortgagees in possession:

And whereas the average profit derived from the undertaking during the last twenty years has been three thousand two hundred and sixty pounds per annum or thereabouts which is wholly inadequate to meet the existing liabilities of and charges on the undertaking and the Company have no means nor any prospect of raising the means to enable them to discharge and provide for such liabilities and charges in full:

And whereas it is expedient that the capital and indebtedness of the Company should be reduced and that provision should be made for liquidating the liabilities of the Company as in this Act provided:

And whereas at an extraordinary meeting of the shareholders and creditors of the Company held at the Town Hall Falmouth on the twelfth day of August one thousand nine hundred and fourteen the heads of a scheme for the reconstruction of the Company and liquidation of the existing liabilities of the Company and embodying the provisions in this Act contained was submitted to the said shareholders and creditors and a resolution was passed unanimously approving of the same:

And whereas the objects of this Act cannot be attained without the authority of Parliament: A.D. 1915.

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

1. This Act may be cited as the Falmouth Docks Act 1915. Short title.

2. The provisions of Part II. (relating to preference stock) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 except so far as the same are varied by or inconsistent with this Act are hereby incorporated with this Act. Incorporation of Companies Clauses Act 1863.

3. In this Act the several words and expressions to which meanings are assigned by the Acts partially incorporated herewith have in this Act the same respective meanings unless there be something in the subject or context repugnant to such construction And— Interpretation.

The expression "the undertaking" means the existing undertaking of the Company and includes all the property and assets of the Company;

The expression "existing" means existing immediately before the commencement of this Act.

4. Subject to the provisions contained in this Act section 31 (Capital) of the Act of 1874 is hereby repealed and all the existing ordinary and preference shares and preference and pre-preference stock of the Company shall be exchanged for ordinary and preference stock to be created and issued under the provisions of this Act in the proportions and manner in this Act provided and all such existing ordinary and preference shares and preference and pre-preference stock shall after the exchange be cancelled and extinguished. Repeal of section 31 of Act of 1874.

5. For the purposes and subject to the provisions of this Act the directors of the Company may from time to time without further or other authority than this Act create and issue stocks of the following amounts and denominations (namely):— Capital.

Ordinary stock to the amount of twenty-five thousand pounds and preference stock to the amount of fifteen thousand pounds and such stocks shall as from the

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passing of this Act respectively be substituted for the existing ordinary preference and pre-preference capital of the Company.

Debenture stock.

6. For the purposes of and subject to the provisions of this Act the directors of the Company may from time to time without further authority than this Act create and issue debenture stock to an amount not exceeding eighteen thousand pounds to be called Falmouth Docks Company "A" debenture stock and may also and in like manner create and issue debenture stock to an amount not exceeding twenty thousand pounds to be called Falmouth Docks Company "B" debenture stock.

Rate of interest and priorities of new debenture stock.

7.—(1) The "A" debenture stock shall bear interest at the rate of five pounds per centum per annum payable half-yearly on such days as the directors of the Company shall from time to time appoint and that stock and the interest thereon shall be a first charge upon the undertaking and shall be redeemable at par within twenty years from the respective dates of issue thereof by means of a sinking fund to be established as in this Act hereinafter provided.

(2) The "B" debenture stock shall bear interest at the rate of four pounds ten shillings per centum per annum payable half-yearly on such days as the directors shall from time to time appoint and that stock and the interest thereon shall be a second charge on the undertaking.

Company not to raise any money during continuance of war.

8. Notwithstanding anything in this Act the Company shall not under the powers of this Act raise any money during the continuance of the present war and twelve months thereafter unless the consent of the Treasury has been previously obtained.

Application of revenue.

9. Subject to the rights of the Public Works Loan Commissioners under the Act of 1874 and their existing mortgages the revenue of the Company shall as from the commencement of this Act be applied as follows:—

- (1) In paying all charges and expenses of or in connection with the working and carrying on of the undertaking:
- (2) In paying the interest at the rate of five pounds per centum per annum on the "A" debenture stock:
- (3) In paying into a sinking fund to be established for the redemption of the "A" debenture stock such half-yearly sum or sums as shall be sufficient to provide

for the redemption of the "A" debenture stock at par by equal half-yearly drawings within a period of twenty years from the date of the creation and issue thereof: A.D. 1915.

- (4) In paying interest at the rate of four pounds ten shillings per centum per annum on the "B" debenture stock from time to time issued under the provisions of this Act:
- (5) In paying interest at the rate of five pounds per centum per annum on the preference stock from time to time created and issued under the provisions of this Act:
- (6) In paying a dividend on the ordinary stock from time to time created and issued under the provisions of this Act.

10. All existing ordinary and preference shares and preference and pre-preference stock shall as soon as may be after the commencement of this Act be exchanged for ordinary or preference stock issued under the provisions of this Act and each holder of existing ordinary shares shall be entitled to and shall accept in exchange for his existing holding such amount of ordinary stock to be created and issued under the provisions of this Act as having regard to the aggregate amount of existing ordinary shares and to the total amount of ordinary stock to be so created and issued shall be proportionate to his existing holding and each holder of existing preference shares preference or pre-preference stock shall be entitled to and shall accept in exchange for his existing holding such amount of preference stock to be created and issued under the provisions of this Act as having regard to the aggregate amount of existing preference shares and preference and pre-preference stock and to the total amount of preference stock to be so created and issued shall be proportionate to his existing holding and all such existing ordinary and preference shares and preference and pre-preference stock respectively shall after the exchange be cancelled and extinguished.

Existing ordinary preference and pre-preference shares and stock to be exchanged for new stock.

11. The directors shall close the registers of the existing shares and stock of the Company at such time and shall do all such other acts as shall be necessary or proper for carrying into effect the provisions of this Act.

Duty of directors to execute provisions.

12. The ordinary and preference stock so exchanged as aforesaid shall be deemed to be fully paid up and shall be

Stock to be subject to same trusts

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—
&c. as exist-
ing shares
and stock.

vested in the holders of existing ordinary and preference shares preference and pre-preference stock respectively upon the same trusts and subject to the same powers provisions conditions agreements charges and incumbrances as those upon which the existing ordinary and preference shares preference and pre-preference stock of the Company or any or either of them were immediately before the commencement of this Act held or subject and so as to give effect to and not to revoke any will or testamentary instrument or other instrument disposing of or affecting any of the existing ordinary and preference shares preference or pre-preference stock respectively.

Certificates
to be issued.

13.—(1) The directors of the Company shall call in the existing certificates for ordinary and preference shares preference or pre-preference stock and shall issue in exchange for those certificates to the respective proprietors thereof free of charge certificates for the respective proportionate amounts of stock to be created and issued under the provisions of this Act to which those proprietors are by this Act respectively entitled.

(2) No existing shareholder or stockholder shall be entitled to a new certificate until he shall have delivered up to the Company to be cancelled the existing certificate for which such new certificate is to be substituted or shall have proved to the reasonable satisfaction of the directors of the Company the loss or destruction thereof and shall have given such guarantee or indemnity as the directors of the Company may require.

(3) Until the issue of such new certificates the existing certificates shall (according to the amounts of ordinary or preference stock to be exchanged by virtue of this Act which they respectively represent) have and confer the same rights and advantages as if they were certificates for the respective amounts of ordinary or preference stock created by virtue of this Act.

(4) If any holder of existing ordinary or preference shares preference or pre-preference stock neglects or omits to send or deliver to the Company his existing certificate or certificates for the period of one year after notice in writing sent by the post to the address appearing on the existing register of members of the Company the directors of the Company may suspend payment of any dividend declared or made payable upon or in respect of the stock substituted under the provisions of this Act for the existing shares or stock so held by him until

such existing certificate or certificates is or are sent or delivered to the Company or is or are proved to the reasonable satisfaction of the directors of the Company to have been lost or destroyed. A.D. 1915.

(5) On the issue of any certificate of ordinary or preference stock to be created and issued under this Act the existing certificate or certificates for which it is substituted shall be cancelled.

(6) If the holder of any existing ordinary or preference shares or preference or pre-preference stock shall for a period of six years from the commencement of this Act neglect or omit to claim in exchange for his existing holding the proportionate amount of ordinary or preference stock as the case may be to which under the provisions of this Act he shall have become entitled in exchange for his existing holding then at the expiration of such period of six years the directors may by notice in writing to be addressed and sent by registered post to such holder at his address as appearing on the existing register of members of the Company and published once in the London Gazette and once in some newspaper published in London and once in some local newspaper published or circulating in Falmouth declare that the existing ordinary or preference shares preference or pre-preference stock to which such holder is entitled will be forfeited and extinguished unless within a period to be fixed by such notice he shall claim in writing to have exchanged for his existing holding the proportionate amount of ordinary or preference stock to which under the provisions of this Act he would be entitled and if at the expiration of the period so fixed by such notice such holder shall still have failed to make such claim the existing ordinary or preference shares preference or pre-preference stock so held by him together with all rights to such exchange as aforesaid shall be deemed to be forfeited and extinguished and the directors may forthwith issue the ordinary or preference stock created under the provisions of this Act to which such holder would have been entitled to such person or persons and in such manner as they may think fit and may apply the proceeds of such issue to the general purposes of the Company to which capital may be properly applied and may appropriate and apply all dividends and interest accrued or accumulated upon or in respect of the stock so forfeited and extinguished up to the date of forfeiture to the general purposes of the Company.

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Debts barred
after six
years from
passing of
Act.

14. No action or other proceeding shall be brought by any creditor or director of the Company to compel allotment of any "B" debenture stock or to recover any debt or sum of money entitling him to such allotment but within six years from the commencement of this Act and the claim of every such creditor or director in respect of any such allotment and in respect of any such debt or sum of money who shall fail to claim such allotment within such last-mentioned period shall be deemed to be absolutely barred and extinguished.

Transfers of
existing
shares and
stock to be
valid.

15. All transfers or other dispositions of existing ordinary and preference shares preference or pre-preference stock in the capital of the Company shall after the substitution therefor of ordinary or preference stock created and issued under the provisions of this Act be valid and have due effect given to them respectively as transfers of the respective amounts of ordinary or preference stock created and issued as aforesaid which the existing ordinary or preference shares preference or pre-preference stock thereby expressed to be transferred or disposed of represent or which are or may be substituted for the same under the provisions of this Act although the instrument transferring or disposing thereof shall describe the same by the names or denominations which the existing ordinary or preference shares preference or pre-preference stock transferred or disposed of had before such substitution and the bequest of or any covenant or provision of any deed or agreement relating to any such existing shares preference or pre-preference stock shall be held to apply to a nominal amount of ordinary or preference stock equivalent to that issued in substitution for such existing ordinary or preference shares preference or pre-preference stock under the provisions of this Act.

Stock to be
transferable
in multiples
of ten
shillings.

16. All stock of the Company shall be issued and shall be transferable only in amounts of ten shillings or multiples of ten shillings Notice of the effect of this enactment shall be stated in all certificates of such stock.

Application
of certain
provisions of
Companies
Clauses Con-
solidation
Act 1845.

17. Subject to the provisions of this Act the provisions of sections 11 to 13 18 to 20 and 62 to 64 in each case inclusive of the Companies Clauses Consolidation Act 1845 shall extend to and apply to all stock of the Company as if the same were shares or stock dealt with by the said sections Provided that the word "Consolidated" shall be omitted from the title of the book to be kept for the purposes of section 63 of the said Act.

18. As from the commencement of this Act section 25 of the Act of 1874 shall be read and have effect as if the words “two hundred and fifty pounds in the ordinary or preference stocks or in ‘A’ or ‘B’ debenture stock” were therein substituted for the words “one thousand pounds of the capital” and the holders of such stocks and such stocks respectively shall be deemed to be shareholders and shares within the meaning of the Companies Clauses Consolidation Act 1845 with reference to the election appointment and qualification of directors.

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Qualification
of directors.

19. Notwithstanding anything in Part III. of the Companies Clauses Act 1863 all holders of ordinary and preference stock and of “A” and “B” debenture stock to be issued under the provisions of this Act shall be entitled to be present at and vote at all meetings of the Company and every holder shall be entitled to one vote in respect of every five pounds of such stocks respectively held by him and the holders of such stocks respectively shall be deemed to be shareholders in the Company within the meaning of the provisions of the Companies Clauses Consolidation Act 1845 with respect to the general meetings of the Company and the exercise of the right of voting by the shareholders.

Right to
vote.

20. The “A” debenture stock to be created and issued under this Act and all sums of money from time to time raised by the creation and issue thereof shall be applied as follows (that is to say) :—

Application
of “A”
debenture
stock.

- (1) In paying all expenses of and incidental to the issue thereof :
- (2) In paying to the Public Works Loan Commissioners all sums of principal and interest for the time being remaining due to them under their existing mortgages :
- (3) By allotting to the executors of the late Robert Milford Tweedy the sum of six thousand pounds in such stock in part payment and satisfaction of the principal and interest due under the said mortgage to them dated the second day of December one thousand eight hundred and sixty-seven.

21. The “B” debenture stock to be created and issued under the provisions of this Act shall be allotted and dealt with as follows (that is to say) :—

Application
of “B”
debenture
stock.

- (1) By allotting to the executors of the late Robert Milford Tweedy the sum of six thousand pounds thereof in

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—

satisfaction of the balance due under the said mortgage and of the said sum of two thousand two hundred and sixty-nine pounds due to Messrs. Tweedy Williams and Company as aforesaid :

- (2) By allotting to each creditor of the Company representing the said aggregate sum of twenty-two thousand four hundred and twenty-one pounds such an amount of stock as taken at par value shall represent a dividend at the rate of five shillings in the pound on the amount of the existing debt due to each such creditor.

Release of
Company
from exist-
ing liabili-
ties.

22. As from the creation and allotment of the said sums of six thousand pounds "A" debenture stock and six thousand pounds "B" debenture stock to the executors of the late Robert Milford Tweedy as aforesaid all sums due to them and to Messrs. Tweedy Williams and Company whether under the provisions of the said mortgage of the second day of December one thousand eight hundred and sixty-seven or in respect of the said sum of two thousand two hundred and sixty-nine pounds so due to Messrs. Tweedy Williams and Company as aforesaid shall be deemed to be fully discharged and satisfied and the said mortgage and all other securities held by the executors of the late Robert Milford Tweedy or by Messrs. Tweedy Williams and Company shall be and the same are hereby cancelled and as from the allotment to each of the existing creditors of the Company of "B" debenture stock representing a dividend at the rate of five shillings in the pound as the case may be on the respective amount due to him as aforesaid the respective sums now due to each such creditor shall be deemed to be fully discharged and satisfied and the provisions of this Act may be pleaded in bar to any action commenced by the executors of the late Robert Milford Tweedy or by Messrs. Tweedy Williams and Company or by any such creditor of the Company for the recovery of any sum in excess of the amounts payable or allotted to them under the provisions of this Act in discharge and satisfaction of their respective debts as aforesaid.

Application
of balance of
"B" debenture
stock.

23. Any balance of "B" debenture stock authorised to be created under the provisions of this Act and not allotted or appropriated as aforesaid may be issued as and when the directors may from time to time determine and the moneys raised by such issue may be applied to the payment of any

debts and to any of the purposes of the Company to which A.D. 1915.
capital is properly applicable.

24. It shall be lawful for the Company at any time on giving not less than three calendar months' notice in writing of their intention to the holders to redeem the whole or any portion of the "A" debenture stock and "B" debenture stock on payment of the par value thereof.

Power to
redeem
debenture
stock.

25. Until payment of the whole of the amounts due to the Public Works Loan Commissioners under their respective mortgages including interest nothing in this Act shall alter prejudice or affect the rights and powers of the said Commissioners under the Act of 1874 and under their respective mortgages.

Rights of
Public
Works Loan
Commis-
sioners pre-
served.

26. The Company may apply to the purposes of this Act including the costs of the application for and passing of this Act any funds which they have in hand at the date of the passing of this Act.

Application
of existing
funds.

27. Subject to the provisions of this Act section 89 of the Act of 1874 is hereby repealed.

Repeal of
section 89 of
Act of 1874.

28. Save as by this Act expressly provided nothing in this Act contained shall alter prejudice or affect any of the rights powers privileges duties and liabilities of the Company under the Act of 1874 or any Act or Acts incorporated therewith.

Saving
rights under
Act of 1874.

29. All costs charges and expenses of and incidental to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

Costs of Act.

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